

LAND CHARGES — does it bind the buyer?

SQE1 core · first ask: is the land REGISTERED or UNREGISTERED?

REGISTERED LAND

LRA 2002

PROTECT ON THE REGISTER

NOTICE

covenants, contracts, easements

RESTRICTION

trusts → overreaching

OVERRIDING INTERESTS — no registration

Schedule 3 LRA 2002

- 1 legal leases ≤ 7 years
- 2 persons in actual occupation
- 3 legal easements

PRIORITY

registration wins · s.29 LRA 2002

HOME RIGHTS (FLA 1996)

NOT an interest → protect by a NOTICE;
never an overriding interest

UNREGISTERED LAND

Land Charges Act 1972

Register against the estate owner's NAME

KEY CLASSES · s.2 LCA 1972

C(i) puisne mortgage (no deeds held)

C(iv) estate contract / option

D(ii) restrictive covenant (post-1925)

D(iii) equitable easement (post-1925)

F home rights (FLA 1996)

NOT REGISTERED → VOID

void vs a buyer for value · s.4 LCA 1972

actual notice is IRRELEVANT — Midland Bank v Green

NON-REGISTRABLE EQUITABLE INTERESTS

→ doctrine of NOTICE (bona fide purchaser)

GOLDEN RULE

Registered → register a notice/restriction (or a Sch 3 overriding interest).

Unregistered → register the LCA 1972 land charge — actual notice will not save an unregistered one.